सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),

मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
SAHAR, ANDHERI (EAST), MUMBAI – 400 099
e-mail- proaccsahar@gmail.com Phone-022-22816696

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 09.04.2020(Web Conference)

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) was held on 09.04.2020 at 03.00 P.M. and was presided over by Smt. Rama Mathew, Hon'ble Chief Commissioner of Customs, Mumbai Zone-III, Shri Vijay Singh Chauhan, Commissioner of Customs (General), Shri Vinayak Azad, Commissioner of Customs (Import), Shri S. Anantha Krishnan, Commissioner of Customs (Export), Shri Hitesh Shah, Commissioner of Customs, APSC, Sahar. In view of lockdown situation on account of threat of Corona virus, the meeting was conducted via Web conference.

Following officers and representatives from the stakeholder organization participated in the meeting:

Name & Designation of Officers	**Organization**
Shri M K Sarangi Addl. Commissioner (Import)	Customs
Shri Pankaj Kumar Addl. Commissioner (APSC)	Customs
Shri Govind Kumar Garg Jt.Commissioner (General)	Customs
Shri Shalabh Katiyar Jt.Commissioner (General)	Customs
Shri Pankaj Kumar Jt.Commissioner (General)	Customs
Shri Prabhakar Kumar Jt.Commissioner (Export)	Customs
Shri M H Hingorani, Asstt. Commissioner of Customs (Import)	Customs
Shri Ravi Suvarna, Asstt. Commissioner of Customs (Import)	Customs
Name of attendees from stakeholder organizations	**Organization**
Shri Bala Ayer, Ms. Chaitaly Mehta, Shri Vineet Agrawal	ACAAI
Shri Dushyant Mulani, Shri Sanjeev Harale, Shri Kaushal Thakkar, Shri Ketan Desai, Shri K.Shetty, Shri Sorab Engineer, Shri Ganpat Korde, Shri Shanakr Shinde, Tej Contractor	BCBA (formerly known as BCHAA)
Ms. Vaishali Kulkarni	COSIA
Shri Manoj Singh	MIAL
Shri K. D. Dhule	AIATSL
Shri Ravindra Shirwadkar	M/s. XEAM
Shri Abhishek Chawla	ADC
Shri Harish Zade	Lufthansa Airlines
Shri Kiran Panbude,	Controller of Stamp
Shri Amardeep and Shri Lynn Boothella	British Airways

At the outset, Commissioner of Customs (Import) welcomed the members of Trade, Customs Brokers, Airlines Representatives, Custodian Representatives, and other stake holders present in the meeting. Following agenda points were taken up:

AGENDA POINTS OF MEETING:

POINTS RAISED BY ACAAI:

1. **To provide location details of Cargo** :

The trade representatives requested to provide location details of the imported cargo at the earliest stage to avoid any discrepancy in case of arrival of any partial shipment. It was stated that if location details are provided before OOC, then amendments can be avoided in case of partial shipments.

Commissioner (G) queried whether there were significant number of cases where such problems were faced or the concern was more theoretical? On being informed that it was more theoretical, Commissioner (G) requested that in present situation, one of the biggest challenges is the storage space constraints faced by the Custodians. Given the limited space available to keep the imported cargo, proper storage in segregated manner is proving to be a challenge. Therefore, he urged the importers/CBs to clear the goods at the earliest, which are lying at Air Cargo complex. He requested the CBs to make efforts to contact the importers, especially importers of pharma products and other essential goods, to clear the shipments on urgent basis to create space for segregation. He informed that as a trade facilitation measure, Customs had approached AIATSL to provide storage space to MIAL to mitigate the storage problem being faced by the latter, which AIATSL has readily agreed to. He thanked AIATSL for their cooperation. In this regard, he also informed that there were bonded/non-bonded warehouses, which can be identified and utilized for storage facility outside ACC.

It was further advised that the trade may identify the cargo for which no B/E has been filed and request the importers to file B/E for the same so as to enable Customs to identify how many shipments are pending for clearance. During meeting, it came out that the cases pertain to earlier period (Pre-lockdown), hence the issue was closed.

(Point Closed)

2. **Levy of demurrage charges from the date of arrival of the shipment by MIAL -**

The Trade informed that MIAL is charging demurrage charges from the date of arrival of the Cargo and not from the date the Location is done.

Shri Manoj Singh representing MIAL informed that the demurrage charges are being levied only after segregation of the shipment is done. However, if any such specific case is noticed, it may be brought to their notice. He further requested that the CB association may take steps to coordinate with the stakeholders/importers to take the delivery of the shipments which have been lying for the past 3-4 weeks.

(Point Closed)

1. **Provisions to be made for the supporting staff**:

The Trade informed that though there was a provision for issue of passes to the CHA staff/importers coming to ACC, Sahar, there is no such provision for the staff working in back office that are responsible for filing of BOEs from CB office, payment of duties etc.

Commissioner (G) informed that work station has been created for CB staff in ACC, Sahar, itself, where they can file the BOEs as well pay duties without having to rely on the back office staff. Hence, the staff coming to ACC, for clearance of goods could also deal with all other work related to filing of BOEs, duty payment, etc., from ACC, itself.

(Point Closed)

Points raised by BCBA:

1) **Challenges faced by the Stakeholders/Brokers:-**

Trade informed that it was difficult for CHAs for identifying the cargo without Location details. Further, that importers are not accepting deliveries of the cargo due to the shutdown of their factories. Also, transport across city borders/State borders, is not possible inspite of the advisory issued by the Government to allow transporters carrying essential goods. A request was made that custom authorities may help in coordinating with the importers to evacuate their cargo and take delivery of the same.

MIAL informed that they were working 24x7 and in coordination with the custom authorities, initiatives have already been taken to contact Importers to take delivery of cargo, especially, critical shipments like medical equipment and other pharma products. Also, interactions with various transport agencies were going on to avoid any problems. If the trade was facing any problems in transportation of goods, they could contact MIAL immediately. MIAL requested the trade representatives to inform the CHAs to clear their cargo without waiting for location details.

(Point Closed)

2) **Precautions taken to fumigate/disinfect the cargo area:**

Trade requested to fumigate/disinfect the cargo area and also the import/export shipments lying there.

MIAL informed that initiatives to make Air Cargo Complex a safe working zone has already been taken and fumigation/disinfection process of all packages has already been initiated and the same will continue on daily basis. Further, that AIWTA, a transport association, has started disinfecting the vehicles which are coming in and going out of ACC, and are also giving masks to whosoever is coming in and going out of the cargo premises.

(Point Closed)

3) **Request for allowing cargo deliveries without AWB copies & request to extend the date for exempting demurrage charges:**

Trade submitted that they were required to furnish original AWBs at the time of taking deliveries of the shipments which needs to be collected from the airlines offices scattered all over and this was not possible in the extant circumstances. Further, they requested that date of exemption of demurrage charges may be extended from 01.04.2020 to 14.04.2020.

MIAL informed that copies of AWB, duly certified by an authorized person, will be accepted for deliveries of Cargo. Further, they informed that the Trade may contact Nodal Officers appointed in the matter for any difficulty faced. With respect to request for extension of exemption of demurrage charges, MIAL submitted that the decision could only be taken by the Govt. of India.

(Point Closed)

4) **Request for online amendment and difficulties faced in printing of documents, IGM regularization, etc., due to absence of staff in CMC:**

Trade informed that due to absence of staff in the CMC department, it was getting difficult to get the printing of documents, regularization of IGM, etc. They requested that they may be allowed to submit their requests along with relevant details via WhatsApp/email.

ADC (Import) informed that a Public Notice no. 60/2020 has already issued for submission of online requests for amendments to CMC.

Further, CMC has confirmed they had already started accepting requests along with relevant details for printing of documents, IGM regularization etc. via WhatsApp/email, so the trade need not come in person for the same.

(Point Closed)

1. Shut down of Gates of Air India (AIATSL) Light & Heavy shed:

The Trade informed that as the gates of Air India Light & Heavy shed were closed, CHAs were going back without taking delivery of their cargo even though they had already obtained OOC for the goods and transport arranged by them. Also, in many cases, delivery was being refused by AIATSL on the pretext that there was no staff available. This was leading a chaotic situation.

Hon'ble Chief Commissioner of Customs, directed Air India to put in place a process to facilitate smooth delivery of the Cargo. Commissioner (G) suggested that AIATSL may put up the contact details/email ids of the staff on duty at the gates so as to avoid any chaos.

AIATSL submitted that as such no delivery was refused by any of their staff on duty. Also, due to shortage of security staff only one gate was kept open from morning 10.00 am to evening 07.30 pm. They further submitted that henceforth they would try to ensure that two gates are kept open and also agreed to share the contact details of their staff who would be available in case of demand. Furthermore, that they would issue a detailed process/guideline to the Trade to avoid any chaos and misunderstanding.

(AIATSL)

6.Request for issuance of Essential Services Duty Passes:

Trade submitted that they are facing difficulty in getting Essential Services Duty Passes which is coming in way of the CB staff travelling to attend work at ACC.

Commissioner (Import) informed that as an additional measure of facilitate trade, Customs had tied up with the police authorities and had taken over the task of issuing Essential Services Duty Passes. Presently, Customs has been receiving many applications for these passes every day and that the process has already been put in place for issuance of such passes on urgent basis.

Commissioner (G) has further informed that in case of emergency in the matter, Shri Pankaj Kumar, Jt. Commissioner (Gen) may be contacted to do the needful.

(Point Closed)

Points raised by Asstt. Drug Controller:

1.Non-functioning of ICEGATE facility –

Assistant Drug Controller informed that his office was facing the issue of non-working of Icegate facility since 21st March, 2020 which was causing hardship in day to day working.

ADC (Import) informed that the matter had already been taken up with DG (Systems) and the same would be resolved within 3-4 working days.

(Point Closed)

Point from Airlines

1.Request for online amendments -

The Airlines representatives requested that they be allowed to process IGM amendments online without paying charges as there is no staff present in the Cash Section.

ADC (Import) informed that Public Notice no. 60/2020 has already been issued for the submission of online requests for amendments.

Commissioner (Import) informed that suitable mechanism will be devised with respect to payment of amendment charges in the absence of cash staff.

(Cash Sec. Gen Commissionerate)

Commissioner of Customs (Export), ACC addressed all stakeholders/CBs requesting them to start normal export operations.

The meeting ended with thanks to the Chair.

This issues with the approval of Commissioners of Customs (General/Import/Export/APSC), Mumbai Customs Zone-III.

29/04/20

(M. K. SARANGI)
Addl. Commissioner of Customs (Import)
Air Cargo Complex, Sahar, Mumbai

Copy to:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, APSC, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, APSC, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section - for circulation in Export/General Commissionerate.
6. EDI Section- for uploading on ACC Website.
7. Office copy.